

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUBC014736: BRADLEY VS SOLANO
07/17/2026 in Department 43
Motion for Attorney Fees/Costs**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Timothy Bradley Motion for Attorney's Fees

Tentative Ruling: The court intends to grant Plaintiff's motion for attorney fees finding that the paragraph 5 of the Statutory Offer to Compromise (Ex. B to the Motion) reflects that Plaintiff met sufficient litigation objectives to determine that he is the prevailing party in this dispute. (Civ. Code, §5975(c); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 621–622.) However, the Court exercises its discretion to reduce the fee award to \$10,000 as explained in detail below.

Discussion

Legal Entitlement to Fees

Plaintiff contends that he is the prevailing party under CC §5975(c)- - In an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs. Plaintiff is also entitled to reasonable fees under the CC&Rs Article XIX sections 1 and 10.

Defendant does not dispute that 5975 applies to this case, instead arguing that Plaintiff is not a prevailing party. Defendant further argues that if fees are awarded, they should be subject to reduction.

In *Haidet v. Del Mar Woods Homeowners Assn.* (2024) 106 Cal.App.5th 530, 540, the court held:

Where, as here, a statute does not define “prevailing party,” “a court may base its attorney fees decision on a pragmatic definition of the extent to which each party has realized its litigation objectives, whether by judgment, settlement, or otherwise.” (Santisas v. Goodin (1998) 17 Cal.4th 599, 621–622, 71 Cal.Rptr.2d 830, 951 P.2d 399.) Even where a plaintiff voluntarily dismisses claims, the court may determine who was a prevailing party. (*Parrott v. Mooring Townhomes Assn., Inc.* (2003) 112 Cal.App.4th 873, 877, 6 Cal.Rptr.3d 116.) We review such a decision for abuse of discretion. (*Heather Farms Homeowners Assn. v. Robinson* (1994) 21 Cal.App.4th 1568, 1574, 26 Cal.Rptr.2d 758.)

In granting the HOA's fee request, the trial court found the “HOA achieved its litigation objectives by succeeding in its demurrer which led to [the Haidets] omitting it from [the FAC]” and to the judgment of dismissal. The court noted that the Haidets had not achieved any of their litigation goals against the HOA, but instead, after losing the demurrer, “decided not to move forward” with the HOA as a defendant.

We think the court's exercise of discretion was within reason. The HOA filed a successful demurrer, and the Haidets were persuaded to drop the HOA from their suit. The Haidets argue that the trial court's ruling was based on its incorrect conclusions that their “claims against Defendant HOA were found to be meritless at the demurrer stage” and they “knew their claims against Defendant HOA had failed at the demurrer stage.” We see no error in these characterizations; the trial court found that the original complaint failed to state any claims for relief against the HOA, and the Haidets elected not to amend their claims against the HOA. Even crediting that this was a strategic decision rather than an acknowledgement that they could not state a claim against the HOA, it was reasonable for the trial court to conclude that the HOA's successful litigation efforts convinced the Haidets not to proceed against it. The HOA “prevailed at the pleading stage and is entitled to attorney fees.” (Cano, *supra*, 143 Cal.App.4th at p. 331, 48 Cal.Rptr.3d 871.)

The complaint here pleads five causes of action, for: Breach of the CC&Rs; Injunctive relief compelling the defendant to rescind its decision from the November Hearing and deem that Bradley is not in violation of the HOA governing documents; Negligence; Nuisance; and Declaratory relief, declaring “that Plaintiff has the right to use the Property to host weddings for friends and family, and that Defendants do not have the right to restrict such use of the Property.”

Plaintiff accepted a statutory offer to compromise, which provided that:

1. Any rights as relates to the November 18, 2022, violation notice would be waived;

2. Payment of \$5,000.00 to Plaintiff would be paid;
3. Plaintiff would dismiss his claims with prejudice;
4. Any determination of prevailing party status would be deferred to the Court;
5. The Association would provide a letter confirming Plaintiff's account being in good standing and it would not pursue rights regarding events alleged in the Complaint; and,
6. There would be no judicial determination or settlement terms specific to the parties respective interpretations of the CC&Rs.

Plaintiff succeeded in achieving the objectives of the first cause of action by having the fine rescinded and the violation waived, but he did not accomplish an objective of having Defendant acknowledge his actions did not violate the CC&Rs. Instead, an agreement was reached that Defendant would rescind, withdraw and not pursue past violations. Plaintiff obtained a monetary recovery, presumably on the second and/or third causes of action for the nominal amount of \$5,000. He failed to obtain a declaration that he “has the right to use the Property to host weddings for friends and family, and that Defendants do not have the right to restrict such use of the Property.” In the Court’s opinion this was the most significant objective of the lawsuit.

Plaintiff obtained a net monetary gain and relief from the prior violations, but his success was highly limited. Nonetheless, Plaintiff has sufficiently a net recovery to be deemed the prevailing party for purposes of awarding attorney’s fees. (*DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140).

Under California law, the starting point for analyzing the reasonableness of attorney fees is a determination of the actual fees and expenses incurred in the action. (See *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1132; *Serrano v. Priest* (1977) 20 Cal.3d 25, 48-49 and n.23; *Oakland v. Oakland Raiders* (1988) 203 Cal.App.3d 78, 82-83; *Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 686; see also *Pasternack v. McCullough* (2021) 65 Cal.App.5th 1050, 1053-59 (affirming fee award of \$146,010 using an hourly rate greater than the fees actually paid for the defense by its insurer); *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 701 (accord).)

The Court recites the following relevant timeline from the Court’s review of the file:

The case was filed September 23, 2023. An answer was filed on November 13, 2023.

At the Case Management Conference on July 18, 2024, trial was scheduled for April 28, 2025. Both case management statements represented that the case would be ready for trial within one year of filing, which would be September 23, 2024. The Court scheduled trial six months later.

A stipulation to continue trial filed by Plaintiff’s counsel on March 5, 2025, 54 days before trial and 24 days before discovery cutoff. The grounds were that counsel would be out of the country, and the parties were “actively discussing settlement.” There was no mention of a need for time to conduct discovery or prepare for trial. The request was granted, and the trial was continued from April 28, 2025, to January 26, 2026.

On October 21, 2025, another stipulation to continue trial was filed by Plaintiff's counsel. The grounds this time were he and plaintiff were too busy, and despite their diligence they were unable to complete discovery. This request was denied based on no good cause.

An ex parte application to continue trial was brought by Plaintiff's counsel on November 13, 2025. The grounds for the request were that counsel and Plaintiff were busy with other matters, and they were actively trying to settle. They also needed to do voluminous discovery, but "despite diligence" would not be ready for trial. The application was denied for no good cause.

An ex parte application to continue the trial was brought by Defendant's counsel on January 13, 2026, and after some additional clarification was granted on January 20, 2026. The grounds were the excused unavailability of an essential witness. The trial was continued from January 26, 2026, to June 1, 2026.

Notice of Settlement filed on May 28, 2026, three days before trial.

The billing records of Plaintiff's counsel are attached. The task descriptions are redacted to the point that the Court cannot make any intelligent determination as to what occurred. For example: "Confer with opposing counsel re [redacted]"; "Confer with client and counsel re [redacted]"; "Continue negotiations re [redacted]"; "Confer with client and mediator re [redacted]." The Court can determine after review of the invoices that a large percentage of the time spent on this matter appears to be discussions with the client and counsel about [redacted] and for reviewing [redacted].

The timeline above and the documents in the court file support the Court's conclusion that minimal discovery or trial preparation was conducted by either side in this matter. The billing records further confirm this conclusion. Plaintiff's counsel represented to the Court in multiple declarations that much discovery was needed to prepare for trial, yet it appears none of it was done, and the settlement was accomplished days before trial, when no more discovery could be done. Counsel's declarations also represent that Plaintiff's counsel was optimistic about settlement early in the process, since the promise of settlement was used as a basis to obtain the initial trial continuance.

Under California Code of Civil Procedure Section 1033(a), a judge has the absolute discretion to deny attorney fees entirely if a plaintiff brings a case in unlimited superior court that could have easily been resolved in limited civil court or small claims. The extreme disproportion between the \$117,000 fee request and a \$5,000 settlement cause the Court great concern.

The Court also notes that Civil Code § 5975 only permits fees for enforcing the CC&Rs. Any hours spent researching, drafting, or litigating the tort claims for negligence and nuisance are not subject to a statutory fee-shifting provision. Because of the heavy-handed redaction, the Court cannot begin to determine an appropriate reduction based on this restriction.

This case involved relatively simple issues and ultimately resulted in a \$5,000 payment and waiver of a \$150 fine. “An experienced trial judge is in the best position to evaluate the value of professional services rendered in the trial court. We presume the fee approved by the trial court is reasonable.” (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal. App. 5th 734, 743.) “The size of a judgment is pertinent to rational evaluation of a requested fee. Rational decisionmaking weighs benefits and costs. The judgment measures the dollar benefit of the litigation. The attorney fee is the cost of obtaining that benefit.” (*Karton*,, *supra* at 746, 747.) “Difficult issues require more attorney hours. (*Ketchum*, *supra*, 24 Cal.4th at p. 1138.) Simpler questions require fewer.” (*Karton*,, *supra* at 746.) The issues here were simple and the billing was excessive.

As attributed to Aesop thousands of years ago, “when all was said and done, more was said than done.” The magnitude of Plaintiff’s success was minimal when compared to the scope of the lawsuit. Counsel billing records do not correspond to the work necessary for an experienced attorney to litigate a case of this type. There is no indication that defense counsel’s actions were responsible for any significant increase in the fees allegedly incurred. Counsel’s prior representations to the Court reveal that much was discussed in this case but not much was accomplished, and what was accomplished could likely have been accomplished much sooner.

The Court awards attorney’s fees of \$10,000.

With respect to costs, the Court orders the parties to follow the procedure for claiming costs after dismissal pursuant to Code of Civil Procedure § 1032 and California Rule of Court 3.1700.

Moving party is ordered to serve notice of the Court’s ruling.